

13. 9:00 AM CASE NUMBER: C24-03374

CASE NAME: MARVIN GONZALEZ VS. JESUS MATA

*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT

FILED BY: GONZALEZ, MARVIN TEMAL

TENTATIVE RULING:

Plaintiff's motion, which is not opposed, is granted. Plaintiff is granted leave to file the proposed First Amended complaint (which is attached to the Haulk Declaration as Exhibit 3), **within ten days of notice of entry of this order.**

As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

14. 9:00 AM CASE NUMBER: C25-01327

CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.

*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT

FILED BY: NOCD FLORIDA BEHAVIORAL HEALTH, P.A.

TENTATIVE RULING:

Parties shall appear. The motion to set aside default, filed by NOCD Florida Behavioral Health, P.A. and NOCD, Inc. (collectively "corporate defendants") is **conditionally granted**. Corporate defendants shall electronically submit for filing a declaration of counsel with an attached proposed pleading on or before the hearing on January 29, 2026.

Background and Analysis

Plaintiff Maria Rheba Estante worked for defendant NOCD Florida Behavioral Health, P.A. from approximately March 2022 through May 2023 as a Licensed Marriage and Family Therapist. Plaintiff was initially engaged as a contractor, but later converted to an employee who worked remotely. Following her termination, plaintiff threatened to sue defendants, retaining counsel. That counsel later sent a "disengagement letter," indicating they would no longer represent plaintiff. (Declaration of Michelle Joyce, ¶8.) Following the disengagement, plaintiff filed this action through new counsel in May of 2025.

In this action, plaintiff alleges six causes of action: including (1) Whistleblower Retaliation in Violation of Labor Code § 1102.5; (2) Wage and Hour Violations Under Labor Code § 203 (Failure To Pay All Wages Due); (3) Wrongful Termination of Employment in Violation of Public Policy; (4) Intentional Infliction of Emotional Distress; (5) Violation of Business and Professions Code § 17200, et seq.; and (6) Violations of Business and Professions Code § 510.

The complaint was served on corporate defendants in June. Corporate defendants failed to timely respond and plaintiff took their defaults in August. The present motion to set aside the defaults was filed in October, not more than five months after service.

Code of Civil Procedure § 473 (b) states, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against

him or her through his or her mistake, inadvertence, surprise, or excusable neglect.

Code of Civil Procedure section 473 is a remedial statute to be “applied liberally” in favor of relief if the opposing party will not suffer prejudice. The law strongly favors trial and disposition on the merits. “Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 24, quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235). “Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980, citations omitted.)

The evidence, as set forth in the Declaration of Michelle Joyce, demonstrates that corporate defendants’ processes for handling service issues were insufficient here. The email “notification” from Corporation Service Company was apparently set up to go to someone uninvolved with this sort of matter. That person, in turn, used an “online platform” (Slack) to forward the documents to others. This sort of communication about important litigation documents lacks the level of formality this Court would typically expect. Perhaps as a result, these processes did not succeed in timely notice to the appropriate person(s), demonstrating organizational neglect in the handling of important litigation documents. Still, this does not amount to anything besides mistake, inadvertence, surprise, or excusable neglect.

Code of Civil Procedure 473 (b) provides, in relevant part (emphasis added):

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. *Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted*, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The timing here is not an issue. Corporate defendants acted promptly and within six months after their default had been entered. While plaintiff contends the showing does not show any neglect to be excusable, the Court resolves the issue in defendants’ favor.

Still, the procedural requirements of this motion have not been met. Corporate defendants attach a proposed motion to compel arbitration to their motion to set aside default, but “pleadings allowed in civil actions are *complaints, demurrers, answers, and cross-complaints*.” (Code Civ. Proc., § 422.10, emphasis added.) Having received no proposed “pleading,” the Court may not presently set aside the default.

Accordingly, so long as defendants submit a proposed pleading (in which they may assert a right to arbitration to counter any waiver argument), the Court intends to grant the motion. Should defendants fail to submit a proposed answer prior to the hearing, the Court will continue the hearing to allow more time for them to do so.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.